

April 5, 2022

Millburn Township Committee Meeting Minutes

Minutes of the Regular Meeting of the Township Committee of the Township of Millburn, in Essex County, New Jersey, held in Town Hall starting at 7:00 PM on the above date.

Mayor Miggins opened the meeting and read the following statement:

In accordance with Section 5 of the Open Meetings Act, Chapter 231, Public Laws, 1975, are advised that notice of this meeting was made by posting on the Bulletin Board, Town Hall, and serving the officially designated newspapers, a notice stating that this meeting would take place at the Town Hall at 7:00 PM on April 5, 2022.

Mayor Miggins asked all those present to stand for the Salute to the Flag.

Upon call of the roll, the following Committee members were recorded present: Tara B. Prupis, Richard J. Wasserman, Maggee Miggins, Sanjeev Vinayak, and Dianne Thall Eglow.

Also present were Business Administrator Alexander McDonald, Township Clerk Christine Gatti (remotely via Zoom), Township Counsel Brad Carney, and Assistant Business Administrator Jesse Moehlman.

Approval of Agenda

Mayor Miggins asked for a motion to approve the agenda as agenda with public comment moved to the beginning of the agenda. The motion was offered by Mr. Wasserman and seconded by Ms. Thall Eglow

Vote: All Ayes

Minutes

Mayor Miggins asked for a motion to approve the January 4, 2022 Regular Township Committee meeting minutes. The motion was made by Ms. Thall Eglow and seconded by Mr. Wasserman. Vote: All Ayes.

Mayor Miggins asked for a motion to approve the January 18, 2021 Regular Township Committee meeting minutes. The motion was made by Ms. Thall Eglow and seconded by Mr. Wasserman. Vote: All Ayes.

Mayor Miggins asked for a motion to approve the January 18, 2021 Special Township Committee meeting minutes. The motion was made by Ms. Thall Eglow and seconded by Mr. Wasserman. Vote: All Ayes.

Proclamation

A proclamation was presented by Mayor Miggins to the Millburn Township Green Team in support of the Native Plant Appreciation Month

A proclamation was presented by Mr. Wasserman to the Police Department to support 2022 Distracted Driving Crackdown.

Reports

Ms. Thall Eglow reported on the Paper Mill Playhouse and advised that the Community Service Award is scheduled to be awarded at the next Committee meeting. She reported on the Parking Ad Hoc and the use of the parking deck. She reported about the Taylor Park Gateway Sub Committee and noted that all of the information is on the website.

Mr. Wasserman reported on upcoming events and activities in the township.

Mr. McDonald provided an update on the Short Hills Avenue Bridge and an anticipated road opening in late April or early May. He reminded residents of the Memorial Day Parade.

Millburn Township Committee Meeting Minutes

Mayor Miggins reported on the Library and hoped they would be open by the end of month.

Public Comment

Mayor Miggins made the following statement: "When invited to speak, please come to the microphone, clearly state your name and address, and speak loudly so that your comments may be understood by all and properly recorded. There was a properly noticed remote option for those who could not attend the meeting in person. If you called in and would like to comment please press *6 now. If you are attending by computer or electronic device please click the raise hand button. All members of the public wishing to speak would be put into the queue to address the Committee. Whenever an audience or Committee member reads from a prepared statement, please email a copy to the Township Clerk's Office at townclerk@millburntwp.org. To help facilitate an orderly meeting and to permit all to be heard, speakers are asked to limit their comments to one 3 minute session. You would be prompted when there was 30 seconds remaining. This was a business meeting and please do not address professionals or staff directly and please direct all comments to me. Each individual would be given one opportunity to make their public comment. Please be patient and we would address each member of the public that wishes to speak."

Mayor Miggins opened the public comment period.

Jeffrey Feld, resident, reviewed litigation and offered various opinions. He noted correspondence provided to the Committee. He offered comments on various agenda items.

Michael Rozansky, resident, spoke of the demographics and reviewed his thoughts on affordable housing in the township.

Jay Morreale, resident, questioned if the Committee would support residents in regards to the overlay zones.

Mr. McDonald advised that a roundtable with impacted residents could be arranged if agreeable to the Committee.

Jean Pasternak, resident, agreed with Mr. Morreale and echoed Mr. Feld's comments. She voiced her opinion and comments on the upcoming affordable housing public session and future liability and environmental concerns with the 100% proposed affordable housing project on Main Street at the DPW site. She also reviewed various agenda items and provided opinions.

Perri Urso, resident/ business owner, voiced her concerns in regard to flex parking, SID, affordable housing. She voiced questions in regard to the overlay zones and provided her support of reinstating the local access channel.

Nancy Stone, resident/business owner, noted that she was pleased with the public forum for the rose garden that was held in town hall and questioned the funds appropriated to move forward with the Taylor Park Gateway project.

Mayor Miggins closed the public comment period and asked if any Committee members had any comments.

Ms. Thall Eglow reviewed MKW's contract and advised they would make the proposed plans available to the residents and Committee for the proposed Taylor Park Gateway project.

Mayor Miggins noted that it appeared apparent that residents didn't want the rose garden touched.

Mr. Moehlman reviewed the timeline and proposed next steps.

Millburn Township Committee Meeting Minutes

Mr. Wasserman stated that he hoped to keep the roses as is and keep the Garden club happy. He reiterated that he supported keeping the roses in place.

Mr. Vinayak agreed and advised he supported keeping the rose garden as it was and hoped all objectives were met.

Mr. Wasserman reviewed upcoming activities and recent accomplishments of the SID.

A brief recess was taken.

Mr. Vinayak reviewed thoughts on Mayoral appointments and recommended moving up an alternate to a regular member. He advised that the Committee was not hiding information and that the meeting was public and open to all. He reviewed affordable housing and how to keep updated on information.

Mr. McDonald reviewed the proposed corner lot ordinance. He reviewed temporary budget funding.

Ms. Prupis exited the meeting

Consent Agenda

Mayor Miggins asked if any of the Committee members had any questions or concerns regarding agenda items. Receiving none, Mayor Miggins asked for a motion to approve the items on the consent agenda Resolutions 22-095 – 22-108; with 22-105, 22-106, and 22-107 being voted on separately. Ms. Thall Eglow made a motion to approve the consent agenda which was seconded by Mr. Wasserman.

Roll Call Vote: Ayes: Wasserman, Vinayak, Miggins, Thall Eglow
Absent: Prupis

RESOLUTION 22-095
APPROVE BILLS PAYABLE

RESOLVED that the Township Treasurer be and hereby is authorized to accept for payment and pay bills or items as they appear on Schedule dated April 5, 2022, in the following accounts:

General Fund	\$ 1,453,101.49
Capital Fund	306,161.75
Parking Utility - Operating Fund	4,689.28
Dog Fund Trust	2,950.00
Donation Trust Fund	2,657.50
Escrow Trust Fund	43.75
Waste Recycling Trust	940.00

RESOLUTION 22-096
AUTHORIZE THE REFUND OF TAX OVERPAYMENTS

NOW, THEREFORE BE IT RESOLVED that the Treasurer of the Township of Millburn be and he is hereby Authorized and directed to the draw warrants to pay the payees listed below in the specified amounts;

<u>Make check payable to:</u>	<u>Type</u>	<u>Amount</u>
McKirdy, Riskin, Olson & DellaPelle, PC & Amr & Barbara Elshaer 201 Littleton Rd, Suite 135 Morris Plains, NJ 07950 Block 3102 Lot 7 76 Minniskink Rd	Tax Appeal 2021 Taxes	\$738.38

Millburn Township Committee Meeting Minutes

RESOLUTION 22-097
AUTHORIZING THE CANCELLATION OF SEWER CHARGE

NOW, THEREFORE BE IT RESOLVED that the Millburn Township Committee authorize the Tax Collector to cancel the 2022 sewer charge listed below:

Block	Lot	Location	No. of Units	Reason	Amount
4702	21	478 Long Hill Dr.	1	vacant land	188.00
801	6	378 Millburn Ave	2	demolition	376.00
801	7	380 Millburn Ave	1	demolition	188.00
1212	12	35 Main Street	9	vacant bldg.	1,692.00

RESOLUTION 22-098
CONFIRM APPOINTMENT OF DIRECTOR OF RECREATION

BE IT RESOLVED that the Millburn Township Committee confirms the appointment of Chris Meyers as Millburn Township Director of Recreation effective April 1, 2022.

RESOLUTION 22-099
AUTHORIZING ONE YEAR OPTION #1 ON CONTRACT
FOR MUNICIPAL POOL FOOD CONCESSION

WHEREAS, the Township of Millburn entered into a contract in 2020 with S.A. Food Associates, LLC, 1231 Beech Avenue, Mountainside, New Jersey 07092, to provide Municipal Pool Food Concession services; and

WHEREAS, the Recreation Department has recommended exercising the Township’s option by renewal of this contract with the same terms and conditions for one additional year which is first option year for the contract (for 2022 season); and

WHEREAS, the Township reserves the right to terminate this contract at any time, providing the contractor is given thirty (30) days written notice;

NOW, THEREFORE, BE IT RESOLVED that the Township Committee hereby authorizes the extension of this contract and the amount of the payment to the Township as set forth in the contract shall be as follows: \$4,900.00 for 2022 plus the adjusted CPI increase.

RESOLUTION 22-100
AUTHORIZING A CONTRACT FOR MOWING OF LARGE TURF AREAS

WHEREAS, the Township of Millburn has requested quotes for the mowing of large turf areas in township parks; and

WHEREAS, the quotes were reviewed by the Qualified Purchasing Agent and it has determined and certified that the value of these services may exceed \$17,500; and

WHEREAS, the Township has determined that D’Onofrio & Son, Inc. of Maplewood, NJ has submitted the most advantageous quote in cost and service; and

WHEREAS, the vendor has completed and submitted Political Contribution Disclosure Forms and Business Entity Disclosure Certifications, as required pursuant to N.J.S.A. 19:44A-20.26, disclosing all reportable political contributions (*more than \$300 per election cycle*) made over the 12 months prior to submission to the committees of the government entities listed on the form provided by the township; and

Millburn Township Committee Meeting Minutes

WHEREAS, the Chief Financial Officer has certified that funds are available for this purpose;

NOW, THEREFORE, BE IT RESOLVED by the Township Committee in the Township of Millburn, County of Essex and the State of New Jersey on this 5th day of April, 2022 that the Business Administrator is authorized to enter into an agreement, if deemed necessary, and that a purchase order is hereby authorized to be executed with D’Onofrio & Son, Inc. of Maplewood, NJ to provide Mowing of Large Turf Areas in an amount not to exceed \$31,200 for 2022.

**RESOLUTION 22-101
OFF DUTY POLICE FEE SCHEDULE**

WHEREAS, Ord. No. 2261-05 § 1 of the Township of Millburn, amended on July 16, 2019 by Ord. No. 2538-19, allows persons and entities to utilize off-duty Township police officers and authorizes outside employment of off-duty Township Police Officers within Essex County; and

WHEREAS, Section 2-16.9 of the Township’s General Code establishes the policies and procedures for off-duty employment of the off-duty Millburn Police Officers in accordance with New Jersey Attorney General Opinion No. 23 (1977) and No. 11 (1978), recommendations of the New Jersey Department of the Treasury, Division of Pensions, including, but not limited to, the notices of August 1989 and February 1990, and New Jersey Department of Community Affairs, Division of Local Government Services, including, but not limited to, Local Finance Notice CFO 2000-14; and

WHEREAS, the hourly rate of compensation to be paid by the requesting third party to the Township for any off-duty Township police officer(s) will be determined by a rate schedule to be established by the Township Committee; and

WHEREAS, the Township Committee shall establish the hourly rate for each category of Township Police Officer by resolution; and

WHEREAS, the rate schedule for police off-duty work should be modified at times to reflect salary adjustments for police officer salaries and remain consistent with other increased costs of providing off-duty services to contractors and third party organizations that require or request such services; and

WHEREAS, the current Off Duty Police Fee Schedule is as follows:

Off-Duty Police Fee Schedule (as of 2018)

All jobs are a 4-hour minimum as per Township Ordinance

- Traffic Direction from 0700-1800 Hours (7:00 AM-6:00 PM) Monday –Saturday - \$64.00 per hour
- Traffic Direction from 1800-0700 Hours (6:00 PM-7:00 AM) All Day Sunday, and State Holidays - \$79.00 per hour
- Paper Mill Theatre- All times for traffic Control – \$57.00 per hour
- Supervisor (which shall be hired when five (5) or more police officers are hired and one more required for every seven (7) officers that are hired – a surcharge of an additional \$14.00 per hour to the prevalent hourly rate shall apply
- Security jobs, Monday through Saturday at all times - \$57.00 per hour
- Security jobs, Sundays and State Holidays at all times - \$64.00 per hour
- Millburn Board of Education jobs at all times for police service – \$57.00 per hour
- Nonprofit Organizations, including houses of worship, at all times for police service - \$57.00 per hour
- Traffic Control and/or parking assistance at all times \$64.00 per hour

If any job goes more than one (1) hour past its posted time a \$14.00 per hour increase shall apply for each additional hour past the original posted time. This rate increase shall also apply for all relief officers and the job continues or for unscheduled employment requested with less than 12 hours’ notice.

8% late fee on all outstanding debts daily shall be assessed to the vender after 15th day after the police-related service has been completed (special emergent needs – most jobs shall be paid in advance.

Millburn Township Committee Meeting Minutes

Township Administration Fee - \$8.00 per hour
Township Vehicle Fee - \$15.00 per hour

NOW, THEREFORE, BE IT RESOLVED that the following revisions shall be made to the Off Duty Police Fee Schedule:

All jobs are a 4-hour minimum as per Township Ordinance. This minimum also applies to any job cancelled less than 2 hours before scheduled start time.

- Traffic Direction from 0700-1800 Hours (7:00 AM-6:00 PM) Monday –Saturday - \$80.00 per hour
- Traffic Direction from 1800-0700 Hours (6:00 PM-7:00 AM) All Day Sunday, and State Holidays - \$94.00 per hour
- Security jobs, Monday through Saturday at all times - \$64.00 per hour
- Security jobs, Sundays and State Holidays at all times - \$70.00 per hour
- If any scheduled job goes past its posted time a \$14.00 per hour increase shall apply. This rate applies to all relief officers.
- Any job scheduled with less than 12 hours’ notice will be charged an additional \$14.00 per hour above the applicable rate.

Township Administration Fee - \$8.00 per hour
Township Vehicle Fee - \$15.00 per hour

BE IT FURTHER RESOLVED that the Mayor and Business Administrator are authorized to execute any other necessary documentation and to take all other actions necessary or desirable to effectuate the terms and conditions of this Resolution.

BE IT FURTHER RESOLVED that this Resolution shall take effect immediately.

RESOLUTION 22-102
APPROVE AND RELEASE CERTAIN CLOSED SESSION MINUTES

BE IT RESOLVED that the following Closed Session Minutes of the Millburn Township Committee are hereby approved and may be released to the public or shall be held as detailed below.

Meeting Date	Hold, Release or Paragraph Number to Hold or Release	Closed Session – Held Matter
2/9/2021	Release	
3/23/2021	Hold All	Pending or Anticipated Litigation – Attorney Client Privileged briefing on pending Litigation/ Court Ordered Mediation involving the Declaratory Judgment Action, Fair Share Housing Center, Woodmont Properties
3/30/2021	Hold All	Pending or Anticipated Litigation – Attorney Client Privileged briefing on pending Litigation/ Court Ordered Mediation involving the

Millburn Township Committee Meeting Minutes

		Declaratory Judgment Action, Fair Share Housing Center, Woodmont Properties
6/1/2021 Reso. 21-163	Hold All	Pending Litigation – Attorney Client Privileged briefing on pending Litigation/ Court Ordered Mediation involving the Declaratory Judgment Action, Fair Share Housing Center, Woodmont Properties
6/1/2021 Reso. 21-164	Hold 1 st , 2 nd , 4 th and 8 th sentences and release remaining	Personnel – Board/Committee Appointment
6/15/2021	Hold All	Pending Litigation – Attorney Client Privileged briefing on pending Litigation/ Court Ordered Mediation involving the Declaratory Judgment Action, Fair Share Housing Center, Woodmont Properties and Annie Sez Property
6/23/2021	Hold All	Attorney Client Privileged briefing on pending Litigation/ Court Ordered Mediation involving the Declaratory Judgment Action, Fair Share Housing Center
7/13/2021	Hold All	Pending Litigation – Attorney Client Privileged briefing on pending Litigation/ Court Ordered Mediation involving the Declaratory Judgment Action, Fair Share Housing Center, Woodmont Properties and Annie Sez Property
7/16/2021	Release	
7/30/2021	Hold All	Pending Litigation – Attorney Client

Millburn Township Committee Meeting Minutes

		Privileged briefing on pending Litigation/ Court Ordered Mediation involving the Declaratory Judgment Action, Fair Share Housing Center, Woodmont Properties and Annie Sez Property
8/13/2021	Release	
8/24/2021	Release	
8/25/2021	Release	

RESOLUTION 22-103
APPROVE RAFFLE LICENSES

WHEREAS, the following have submitted application to the Township Clerk to conduct a raffle, providing all required identification and the appropriate fees; and

WHEREAS, the Police Department is in receipt of a copy of the application per the regulation of the Legalized Games of Chance Control Commission.

NOW, THEREFORE, BE IT RESOLVED that the following be approved:

Paper Mill Playhouse
Cooperman Barnabas Medical Center
Glenwood School PTO

RESOLUTION 22-104
APPROVE 2022-2023 TAXI/LIVERY LICENSE

WHEREAS, the following applicant(s) has submitted an application for a Taxicab/Livery License; providing all required documentation and the appropriate fees;

NOW, THEREFORE BE IT RESOLVED that a 2022 – 2023 Taxi/Livery License be issued to:

<u>NAME</u>	<u>STATUS</u>
Short Hills Taxi & Livery Service	Taxi & Livery Company

RESOLUTION 22-108
APPROVE SIDEWALK CAFÉ LICENSES

WHEREAS, the following has submitted an application to the Township Clerk to obtain a sidewalk café license, providing all required documentation and the appropriate fees; and

WHEREAS, the appropriate departments have conducted investigations of those establishments and have found nothing to prevent their issuance;

NOW, THEREFORE, BE IT RESOLVED that the following be approved and a sidewalk café license be issued:

Cara Mia

RESOLUTION

Resolution 22-105

Resolution 22-105 was brought forth. Mayor Miggins asked for a motion to approve Resolution 22-105. Mr. Vinayak made a motion to approve Resolution 22-105 which was seconded by Mr. Wasserman.

Roll Call Vote: Ayes: All Ayes

RESOLUTION 22-105
ADOPTION OF 2022 EMERGENCY TEMPORARY APPROPRIATIONS
PRIOR TO ADOPTION OF BUDGET

WHEREAS, Local Finance Notice 2021-24 set the statutory deadline for 2022 municipal budget adoption as April 29, 2022 or the next scheduled meeting of the governing body; and

WHEREAS, resolution 22-001 adopted the 2022 temporary budget as 26.25% prior year appropriations; and

WHEREAS, N.J.S.A. 40A:4-20 provides that, in addition to temporary appropriations necessary for the period prior to the adoption of the budget and regular appropriations, the governing body may make emergency temporary appropriations for any purpose for which appropriations may lawfully be made for the period between the beginning of the current fiscal year and the date of the adoption of the budget for the current fiscal year; and

WHEREAS, the Township has deemed certain emergency temporary appropriations to be necessary and such appropriations are conforming to the provisions of N.J.S.A 40A:4-20; and

WHEREAS, the total 2022 emergency temporary resolutions adopted in the year 2022 pursuant to the provisions of Chapter 96, P.L. (N.J.S.A. 40A:4-20) including this resolution total \$30,953,493;

NOW, THEREFORE, BE IT RESOLVED by the Millburn Township Committee that in accordance with the provisions of N.J.S.A. 40A:4-20:

1.
- Emergency temporary appropriations be and the same are hereby made for and in the amounts as follows:

	Temp Budget	Additions
Administrative and Executive:		
Salaries and Wages	135,188	94,631
Other Expenses	47,119	32,983
Governing Body:		
Salaries and Wages	9,844	6,891
Municipal Clerk:		
Salaries and Wages	63,000	44,100
Other Expenses	24,544	17,181
Elections		
Salaries and Wages	2,625	1,838
Other Expenses	3,806	2,664
Comptroller		
Salaries and Wages	93,188	65,231

Millburn Township Committee Meeting Minutes

Other Expenses	12,206	8,544
Annual Audit	13,125	9,188
EDP		
Other Expenses	75,485	52,839
Collection of Taxes:		
Salaries and Wages	42,000	29,400
Other Expenses	13,965	9,776
Tax Assessor:		
Salaries and Wages	53,813	37,669
Other Expenses	16,144	11,301
Legal Services and Costs:		
Other Expenses	210,000	147,000
Engineering Services and Costs:		
Salaries and Wages	81,375	56,963
Other Expenses	29,400	20,580
Historic Preservation		
Salaries and Wages	1,313	919
Other Expenses	289	202
Zoning Board		
Salaries and Wages	14,306	10,014
Other Expenses	11,524	8,067
Planning Board		
Salaries and Wages	15,750	11,025
Other Expenses	11,209	7,846
Construction Code		
Salaries and Wages	157,500	110,250
Other Expenses	102,375	71,663
Insurance:		
General Liability	262,077	196,557
Workers' Compensation	192,819	144,614
Employee Group Health	1,812,424	1,359,318
Health Waivers		
Department of Public Safety:		
Salaries and Wages	1,923,750	1,442,813
Other Expenses	179,996	134,997
Crossing Guards:		
Other Expenses	200,000	150,000
Emergency Management:		
Other Expenses	3,938	2,953
Fire Department:		
Salaries and Wages	1,830,000	1,372,500
Other Expenses	84,114	63,085
Aid to Volunteer Ambulance:		
Other Expenses	1,313	984
Road Repairs and Maintenance:		
Salaries and Wages	930,550	697,913
Other Expenses	62,213	46,659
Snow Removal:		
Salaries and Wages	51,250	38,438
Other Expenses	58,013	43,509
Shade Tree:		
Salaries and Wages	223,125	167,344

Millburn Township Committee Meeting Minutes

Other Expenses	143,588	107,691
Sewer Sanitation:		
Other Expenses	45,701	34,276
Public Buildings and Grounds:		
Other Expenses	108,570	81,428
Vehicle Maintenance		
Salaries and Wages	91,875	68,906
Other Expenses	62,738	47,053
Health Department:		
Salaries and Wages	5,250	3,938
Other Expenses	3,628	2,721
Environmental Commission:		
Other Expenses	656	492
Public Assistance:		
Other Expenses	5,500	4,125
Parks and Playgrounds:		
Salaries and Wages	194,313	145,734
Other Expenses	49,875	37,406
Swimming Pool:		
Salaries and Wages	23,625	17,719
Other Expenses	24,518	18,388
Customer Service:		
Salaries and Wages	47,250	35,438
Other Expenses	919	689
Par 3:		
Other Expenses	4,174	3,130
Senior Citizens:		
Salaries and Wages	36,750	27,563
Other Expenses	3,938	2,953
Celebrations:		
Other Expenses	5,250	3,938
Municipal Court:		
Salaries and Wages	85,313	63,984
Other Expenses	33,118	24,838
Public Defender:		
Other Expenses	3,544	2,658
Special Improvement District:		
Salaries and Wages	55,000	
Other Expenses		
Recycling and Landfill		
Other Expenses	816,486	612,364
Utilities:		
Gasoline, Diesel Fuel and Lubricants	136,625	102,469
Street Lighting	65,625	49,219
Natural Gas	34,125	25,594
Telephone	51,188	38,391
Fire Hydrant	105,000	78,750
Electricity	73,631	55,223
Reserves		
Accumulated Absences	131	98
Snow Trust	131	98
Tax Appeals	50,000	37,500

Millburn Township Committee Meeting Minutes

Litigation Trust	131	98
EPL/POL Trust	131	98
Contingent	9,188	6,891
OPERATIONS WITHIN CAPS	11,434,151	8,472,309
Public Employees' Retirement System	343,593	1,022,021
Public Employees' Retirement System ERI	20,387	
Social Security System (O.A.S.I.)	264,639	198,479
Police and Firemen's Retirement System	936,924	2,661,377
State Unemployment Insurance		
DCRP	1,313	984
TOTAL APPROPRIATION WITHIN CAPS	1,566,855	3,882,861
Free Public Library	991,178	743,383
Joint Outlet Sewer Maintenance	393,519	295,139
Employer Health (Excluded)		
Interlocal - Condo	18,375	13,781
Interlocal - Hepatitis	3,043	2,282
Interlocal - Plumbing (Maplewood)	17,563	13,173
Interlocal - Electric (Maplewood)	15,294	11,470
Interlocal - Livingston	38,883	29,162
Interlocal - Dispatch	337,755	253,316
Capital Improvement Fund	500,000	
Note Principal	1,800,000	
Note Interest	120,000	
TOTAL APPROPRIATION OUTSIDE CAPS	4,235,610	1,361,707
TOTAL TEMPORARY MUNICIPAL BUDGET	17,236,616	13,716,877

2. That said emergency temporary appropriations will be provided for in the 2022 budget under the titles aforesaid.
3. That one certified copy of this resolution be filed with the Director of Local Government Services.

Ms. Prupis returned to the meeting

Resolution 22-106

Resolution 22-106 was brought forth. Mayor Miggins asked for a motion to approve Resolution 22-106. Ms. Thall Eglow made a motion to approve Resolution 22-106 which was seconded by Mr. Wasserman.

Roll Call Vote: Ayes: All Ayes

RESOLUTION 22-106
GOVERNING BODY CERTIFICATION OF COMPLIANCE WITH THE

Millburn Township Committee Meeting Minutes

UNITED STATES EQUAL EMPLOYMENT OPPORTUNITY COMMISSION’S
“Enforcement Guidance on the Consideration of Arrest and Conviction Records in Employment
Decisions Under Title VII of the Civil Rights Act of 1964”

WHEREAS, N.J.S.A. 40A:4-5 as amended by P.L. 2017, c.183 requires the Governing Body of each municipality and county to certify that their local unit’s hiring practices comply with the United States Equal Employment Opportunity Commission’s “Enforcement Guidance on the Consideration of Arrest and Conviction Records in Employment Decisions Under Title VII of the Civil Rights Act of 1964,” *as amended*, 42 U.S.C. § 2000e *et seq.*, (April 25, 2012) before submitting its approved annual budget to the Division of Local Government Services in the New Jersey Department of Community Affairs; and

WHEREAS, the members of the Governing Body have familiarized themselves with the contents of the above-referenced enforcement guidance and with their local unit’s hiring practices as they pertain to the consideration of an individual’s criminal history, as evidenced by the group affidavit form of the governing body attached hereto.

NOW, THEREFORE BE IT RESOLVED, that the Township Committee of the Township of Millburn, hereby states that it has complied with N.J.S.A. 40A:4-5, as amended by P.L. 2017, c.183, by certifying that the local unit’s hiring practices comply with the above-referenced enforcement guidance and hereby directs the Clerk to cause to be maintained and available for inspection a certified copy of this resolution and the required affidavit to show evidence of said compliance.

Resolution 22-107

Resolution 22-107 was brought forth. Mr. McDonald and Mr. Laracy, CFO, presented and reviewed the budget with the committee. Mayor Miggins advised the public hearing for the budget would be at the May 3, 2022 Township Committee Meeting. Notice in the newspaper would be on April 14, 2022. Mayor Miggins asked for a motion to approve Resolution 22-107. Ms. Thall Eglow made a motion to approve Resolution 22-107 which was seconded by Mr. Vinayak.

Roll Call Vote: All Ayes

RESOLUTION 22-107
RESOLUTION TO APPROVE BUDGET AND
SET PUBLIC HEARING DATE (May 3, 2022)

MUNICIPAL BUDGET NOTICE
Municipal Budget of the Township of Millburn, County of Essex
for the Fiscal Year 2022

BE IT RESOLVED, that the following statements of revenues and appropriations shall constitute the Municipal Budget for the year 2022; and

BE IT FURTHER RESOLVED, that said Budget be published in The Item of Millburn and Short Hills in the issue of April 14, 2022.

The Governing Body of the Township of Millburn does hereby approve the following as the Budget for the year 2022:

RECORDED VOTE:	Ayes:	Tara Prupis	Nays:	NONE
		Dianne Thall Eglow	Absent:	NONE
		Sanjeev Vinayak	Abstain:	NONE
		Richard Wasserman		
		Maggee Miggins		

Notice is hereby given that the Budget and Tax Resolution was approved by the Township Committee of the Township of Millburn, County of Essex, on April 5, 2022.

A Hearing on the Budget and Tax Resolution will be held at Town Hall on May 3, 2022 at 7:00 p.m. at which time and place objections to said Budget and Tax Resolution for the year 2022 may be presented by taxpayers or other interested parties.

Ordinance / Second Reading and Consideration of Adoption

Ordinance 2596-22

Mayor Miggins brought forth Ordinance 2596-21 for public hearing. A brief explanatory statement about the ordinance was made.

Mayor Miggins opened the public hearing.

Jeffrey Feld, resident, asked for a list of ordinances required for affordable housing and voiced opinions on the matter.

Mayor Miggins closed the public hearing.

Mayor Miggins moved the ordinance to be taken up and passed on second reading. Mr. Thall Eglow seconded the motion. Mayor Miggins requested a roll call vote.

Roll Call Vote: Ayes: Vinayak, Wasserman, Miggins
Nays: Prupis, Thall Eglow

ORDINANCE NO. 2596-22
AN ORDINANCE CREATING CHAPTER 501 "AFFORDABLE HOUSING"

STATEMENT OF PURPOSE: *Ordinance 2596-22 updates the Township's affordable housing regulations to be consistent with the terms of the Settlement Agreement between the Township and Fair Share Housing Center, as well as with the Uniform Housing Affordability Control rules (N.J.A.C. 5:80-26.1), COAH's substantive rules (N.J.A.C. 5:93), and the Fair Housing Act (N.J.S.A. 52:27D-301. et seq.)*

WHEREAS, the Township of Millburn executed a Settlement Agreement with the Fair Share Housing Center on August 17, 2021 (hereinafter the "Settlement Agreement") that determines the municipality's affordable housing obligation and the preliminary compliance plan for how the obligation will be addressed; and

WHEREAS, the Settlement Agreement requires that the Township update its affordable housing regulations to be consistent with the terms of Settlement Agreement, as well as with the Uniform Housing Affordability Control rules (N.J.A.C. 5:80-26.1), COAH's substantive rules (N.J.A.C. 5:93), and the Fair Housing Act (N.J.S.A. 52:27D-301. et seq.); and

NOW, THEREFORE, BE IT ORDAINED by the Governing Body of the Township of Millburn, in the County of Essex and State of New Jersey as follows:

Section I. Chapter DRZ, Article 5, Section DRZ-501 entitled "Affordable Housing" is hereby created and shall be added to the Code to read as follows:

Section DRZ- 501 "Affordable Housing"

§ 501.1 Affordable Housing Obligation: General Program Purposes, Procedures

- a. This section of the Township Code sets forth regulations regarding the low and moderate income housing units in the Township consistent with the provisions known as the "Substantive Rules of the New Jersey Council on Affordable Housing", N.J.A.C. 5:93 et seq., the Uniform Housing Affordability Controls ("UHAC"), N.J.A.C. 5:80-26.1 et seq., except where modified by the requirements for very-low income housing as established in P.L. 2008, c.46 (the "Roberts Bill", codified at N.J.S.A. 52:27D-329.1) as reflected in the terms of a Settlement Agreement between the Township and Fair Share Housing Center ("FSHC") such that the statutory requirement to provide very-low income units equal to 13% of affordable units approved and constructed after July 17, 2008, to be affordable to households at 30% of the regional median income, overrides the UHAC requirement that 10% of all low- and moderate-income units must be affordable at 35% of the regional median income, and the Township's constitutional

Millburn Township Committee Meeting Minutes

obligation to provide a fair share of affordable housing for low and moderate income households.

- b. This Ordinance is intended to assure that very-low, low- and moderate-income units ("affordable units") are created with controls on affordability and that very- low, low- and moderate-income households shall occupy these units. This Ordinance shall apply to all inclusionary developments and 100% affordable developments (including those funded with low-income housing tax credit financing) except where inconsistent with applicable law.
- c. The Millburn Township Planning Board has adopted a Housing Element and Fair Share Plan pursuant to the Municipal Land Use Law at *N.J.S.A. 40:55D-1*, et seq. The Plan has also been endorsed by the Mayor and Committee of the Township of Millburn. The Fair Share Plan describes the ways the Township shall address its fair share for low- and moderate- income housing as determined by the Superior Court and documented in the Housing Element.
- d. This Ordinance implements and incorporates the Fair Share Plan and addresses the requirements of *N.J.A.C. 5:93*, as may be amended and supplemented.

§ 501.2 Definitions. As used herein the following terms shall have the following meanings:

Act

The Fair Housing Act of 1985, P.L. 1985, c. 222 (*N.J.S.A. 52:27D-301* et seq.).

Adaptable

Constructed in compliance with the technical design standards of the Barrier Free Subcode, *N.J.A.C. 5:23-7*.

Administrative agent

The entity responsible for the administration of affordable units in accordance with this ordinance, *N.J.A.C. 5:91*, *N.J.A.C. 5:93* and *N.J.A.C. 5:80-26.1* et seq.

Affirmative marketing

A regional marketing strategy designed to attract buyers and/or renters of affordable units pursuant to *N.J.A.C. 5:80-26.15*.

Affordability average

The average percentage of median income at which restricted units in an affordable housing development are affordable to low- and moderate-income households.

Affordable

A sales price or rent within the means of a low- or moderate-income household as defined in *N.J.A.C. 5:93-7.4*; in the case of an ownership unit, that the sales price for the unit conforms to the standards set forth in *N.J.A.C. 5:80-26.6*, as may be amended and supplemented, and, in the case of a rental unit, that the rent for the unit conforms to the standards set forth in *N.J.A.C. 5:80-26.12*, as may be amended and supplemented.

Affordable housing development

A housing development of which all or a portion of which consists of restricted units.

Affordable housing program(s)

Any mechanism in a municipal Fair Share Plan prepared or implemented to address a municipality's fair share obligation.

Affordable unit

A housing unit proposed or created pursuant to the Act, credited pursuant to *N.J.A.C. 5:93*, and/or funded through an affordable housing trust fund.

Millburn Township Committee Meeting Minutes

Agency

The New Jersey Housing and Mortgage Finance Agency established by P.L. 1983, c. 530 (N.J.S.A. 55:14K-1, et seq.).

Age-restricted unit

A housing unit designed to meet the needs of, and exclusively for, the residents of an age-restricted segment of the population such that: 1) all the residents of the development where the unit is situated are 62 years or older; or 2) at least 80% of the units are occupied by one person that is 55 years or older; or 3) the development has been designated by the Secretary of the U.S. Department of Housing and Urban Development as "housing for older persons" as defined in Section 807(b)(2) of the Fair Housing Act, 42 U.S.C. § 3607.

Alternative living arrangement

A structure in which households live in distinct bedrooms, yet share kitchen and plumbing facilities, central heat and common areas. Alternative living arrangement includes, but is not limited to: transitional facilities for the homeless, Class A, B, C, D, and E boarding homes as regulated by the New Jersey Department of Community Affairs; residential health care facilities as regulated by the New Jersey Department of Health; group homes for the developmentally disabled and mentally ill as licensed and/or regulated by the New Jersey Department of Human Services; and congregate living arrangements.

Assisted living residence

A facility licensed by the New Jersey Department of Health and Senior Services to provide apartment-style housing and congregate dining and to assure that assisted living services are available when needed for four or more adult persons unrelated to the proprietor and that offers units containing, at a minimum, one unfurnished room, a private bathroom, a kitchenette and a lockable door on the unit entrance.

Certified household

A household that has been certified by an Administrative Agent as a low-income household or moderate-income household.

COAH

The Council on Affordable Housing, which is in, but not of, the Department of Community Affairs of the State of New Jersey, that was established under the New Jersey Fair Housing Act (N.J.S.A. 52:27D-301 et seq.).

DCA

The State of New Jersey Department of Community Affairs.

Developer

Any person, partnership, association, company or corporation that is the legal or beneficial owner or owners of a lot or any land proposed to be included in a proposed development including the holder of an option to contract or purchase, or other person having an enforceable proprietary interest in such land.

Development

The division of a parcel of land into two or more parcels, the construction, reconstruction, conversion, structural alteration, relocation, or enlargement of any use or change in the use of any building or other structure, or of any mining, excavation or landfill, and any use or change in the use of any building or other structure, or land or extension of use of land, for which permission may be required pursuant to N.J.S.A. 40:55D-1 et seq.

Development Fee

Money paid by a developer for the improvement of property as permitted in N.J.A.C. 5:93-8.

Equalized Assessed Value

The assessed value of a property divided by the current average ratio of assessed to true value for the municipality in which the property is situated, as determined in accordance with Sections 1, 5, and 6 of P.L. 1973, c. 123 (N.J.S.A. 54:1-35a through 54:1-35c).

Fair Share Plan

The plan that describes the mechanisms, strategies and the funding sources, if any, by which the Township proposes to address its affordable housing obligation as established in the Housing Element, including the draft ordinances necessary to implement that plan, and addresses the requirements of N.J.A.C. 5:93-5.

Housing Element

The portion of the Township's Master Plan, required by the Municipal Land Use Law ("MLUL"), N.J.S.A. 40:55D-28b(3) and the Act, that includes the information required by N.J.A.C. 5:93-5.1 and establishes the Township's fair share obligation.

Inclusionary development

A development containing both affordable units and market rate units. This term includes, but is not necessarily limited to: new construction, the conversion of a non-residential structure to residential and the creation of new affordable units through the reconstruction of a vacant residential structure.

Low-income household

A household with a total gross annual household income equal to 50% or less of the median household income.

Low-income unit

A restricted unit that is affordable to a low-income household.

Market-rate units

Housing not restricted to low- and moderate-income households that may sell or rent at any price.

Median income

The median income by household size for the applicable county, as adopted annually by COAH or approved by the NJ Superior Court.

Moderate-income household

A household with a total gross annual household income in excess of 50% but less than 80% of the median household income.

Moderate-income unit

A restricted unit that is affordable to a moderate-income household.

Non-exempt sale

Any sale or transfer of ownership other than the transfer of ownership between husband and wife; the transfer of ownership between former spouses ordered as a result of a judicial decree of divorce or judicial separation, but not including sales to third parties; the transfer of ownership between family members as a result of inheritance; the transfer of ownership through an executor's deed to a class A beneficiary and the transfer of ownership by court order.

Random selection process

A process by which currently income-eligible households are selected for placement in affordable housing units such that no preference is given to one applicant over another except for purposes of matching household income and size with an appropriately priced and sized affordable unit (e.g., by lottery).

Regional asset limit

The maximum housing value in each housing region affordable to a four-person household with an income at 80% of the regional median as defined by adopted/approved Regional Income Limits.

Rehabilitation

The repair, renovation, alteration or reconstruction of any building or structure, pursuant to the Rehabilitation Subcode, N.J.A.C. 5:23-6.

Millburn Township Committee Meeting Minutes

Rent

The gross monthly cost of a rental unit to the tenant, including the rent paid to the landlord, as well as an allowance for tenant-paid utilities computed in accordance with allowances published by DCA for its Section 8 program. In assisted living residences, rent does not include charges for food and services.

Restricted unit

A dwelling unit, whether a rental unit or ownership unit, that is subject to the affordability controls of *N.J.A.C. 5:80-26.1*, as may be amended and supplemented, but does not include a market-rate unit financed under UHORP or MONI.

Special master

An expert appointed by a judge to make sure that judicial orders are followed. A master's function is essentially investigative, compiling evidence or documents to inform some future action by the court.

UHAC

Uniform Housing Affordability Controls set forth in *N.J.A.C. 5:80-26.1* et seq.

Very-low income household

A household with a total gross annual household income equal to 30% or less of the median household income.

Very-low income unit

A restricted unit that is affordable to a very-low income household.

§ 501.3 Administration of Affordable Units. The following requirements shall apply to all new or planned developments that contain low- and moderate- income housing units.

- a. The requirements of this section apply to all developments that contain affordable housing units, including any currently unanticipated future developments that will provide low- and moderate- income housing units.
- b. Phasing. Affordable housing developments shall meet the following phasing schedule for low and moderate income units whether developed in a single phase development, or in a multi-phase development:

Maximum Percentage of Low- Market-Rate Units Completed	Minimum Percentage of and Moderate- Income Units Completed
25	0
25+1	10
50	50
75	75
90	100
100	

- c. Design. In inclusionary developments, low- and moderate- income units shall be integrated with the market units and shall have access to all of the same common elements and facilities as the market units.
- d. Utilities. Affordable units shall utilize the same type of heating source as market units within the affordable development.
- e. Low/Moderate Split and Bedroom Distribution of Affordable Housing Units:
 - 1. The fair share obligation shall be divided equally between low- and moderate- income units, except that where there is an odd number of affordable housing units, the extra unit shall be a low income unit. At least thirteen percent (13%) of all restricted units shall be very-low income units (affordable to a household earning thirty percent (30%) or less of the

Millburn Township Committee Meeting Minutes

regional median income by household size). The very-low-income units shall be counted as part of the required number of low income units in the development.

2. In each affordable housing development, the total number of units within each bedroom distribution shall have at least 50% of the units restricted for low-income households, with at least 13% affordable to very-low-income households.
 3. Affordable developments that are not age-restricted shall be structured in conjunction with realistic market demands such that:
 - (a) The combined number of efficiency and one-bedroom units shall be no greater than 20% of the total low- and moderate-income units;
 - (b) At least 30% of all low- and moderate-income units shall be two bedroom units;
 - (c) At least 20% of all low- and moderate-income units shall be three bedroom units; and
 - (d) The remaining units may be allocated among two and three bedroom units at the discretion of the developer.
 4. Affordable developments that are age-restricted shall be structured such that the number of bedrooms shall equal the number of age-restricted low- and moderate-income units within the inclusionary development. The standard may be met by having all one-bedroom units or by having a two-bedroom unit for each efficiency unit.
- f. Accessibility Requirements:
1. The first floor of all new restricted townhouse dwelling units and all restricted multistory dwelling units attached to at least one (1) other dwelling unit shall be subject to the technical design standards of the Barrier Free Subcode, *N.J.A.C. 5:23-7*.
 - (b) All restricted townhouse dwelling units and all restricted multistory dwelling units attached to at least one (1) other dwelling unit shall have the following features:
 - (a) An adaptable toilet and bathing facility on the first floor;
 - (b) An adaptable kitchen on the first floor;
 - (c) An interior accessible route of travel on the first floor;
 - (1) An interior accessible route of travel shall not be required between stories within an individual unit;
 - (e) An adaptable room that can be used as a bedroom, with a door or the casing for the installation of a door, on the first floor; and
 - (f) An accessible entranceway as set forth at P.L. 2005, c. 350 (*N.J.S.A. 52:27D-311a et seq.*) and the Barrier Free Subcode, *N.J.A.C. 5:23-7*, or evidence that the Township has collected funds from the developer sufficient to make 10% of the adaptable entrances in the development accessible:

Millburn Township Committee Meeting Minutes

- (1) Where a unit has been constructed with an adaptable entrance, upon the request of a disabled person who is purchasing or will reside in the dwelling unit, an accessible entrance shall be installed.
- (2) To this end, the builder of restricted units shall deposit funds within the Township of Millburn's affordable housing trust fund sufficient to install accessible entrances in 10% of the affordable units that have been constructed with adaptable entrances.
- (3) The funds deposited under paragraph (2) herein, shall be used by the Township for the sole purpose of making the adaptable entrance of any affordable unit accessible when requested to do so by a person with a disability who occupies or intends to occupy the unit and requires an accessible entrance.
- (4) The developer of the restricted units shall submit a design plan and cost estimate for the conversion from adaptable to accessible entrances to the Construction Official of the Township of Millburn.
- (5) Once the Construction Official has determined that the design plan to convert the unit entrances from adaptable to accessible meet the requirements of the Barrier Free Subcode, N.J.A.C. 5:23-7, and that the cost estimate of such conversion is reasonable, payment shall be made to the Township of Millburn's affordable housing trust fund in care of the Municipal Treasurer who shall ensure that the funds are deposited into the affordable housing trust fund and appropriately earmarked.
- (6) Full compliance with the foregoing provisions shall not be required where an entity can demonstrate that it is site impracticable to meet the requirements. Determinations of site impracticability shall be in compliance with the Barrier Free Subcode, N.J.A.C. 5:23-7.

g. Maximum Rents and Sales Prices.

1. In establishing rents and sales prices of affordable housing units, the administrative agent shall follow the procedures set forth in UHAC and by the Superior Court, utilizing the regional income limits established.
2. The maximum rent for restricted rental units within each affordable development shall be affordable to households earning no more than 60% of median income, and the average rent for restricted low- and moderate-income units shall be affordable to households earning no more than 52% of median income.
3. The developers and/or municipal sponsors of restricted rental units shall establish at least one rent for each bedroom type for both low-income and moderate-income units.
 - (a) At least 13% of all low- and moderate-income rental units shall be affordable to households earning no more than 30% of median income.
4. The maximum sales price of restricted ownership units within each affordable development shall be affordable to households earning no more

Millburn Township Committee Meeting Minutes

than 70% of median income, and each affordable development must achieve an affordability average of 55% for restricted ownership units; in achieving this affordability average, moderate-income ownership units must be available for at least three different prices for each bedroom type, and low-income ownership units must be available for at least two different prices for each bedroom type.

5. In determining the initial sales prices and rents for compliance with the affordability average requirements for restricted units other than assisted living facilities, the following standards shall be met:
 - (a) A studio or efficiency unit shall be affordable to a one-person household;
 - (b) A one-bedroom unit shall be affordable to a one and one-half person household;
 - (c) A two-bedroom unit shall be affordable to a three-person household;
 - (d) A three-bedroom unit shall be affordable to a four and one-half person household; and
 - (e) A four-bedroom unit shall be affordable to a six-person household.
6. In determining the initial rents for compliance with the affordability average requirements for restricted units in assisted living facilities, the following standards shall be met:
 - (a) A studio or efficiency unit shall be affordable to a one-person household;
 - (b) A one-bedroom unit shall be affordable to a one and one-half person household; and
 - (c) A two-bedroom unit shall be affordable to a two-person household or to two one-person households.
7. The initial purchase price for all restricted ownership units shall be calculated so that the monthly carrying cost of the unit, including principal and interest (based on a mortgage loan equal to 95% of the purchase price and the Federal Reserve H.15 rate of interest), taxes, homeowner and private mortgage insurance and condominium or homeowner association fees do not exceed 28% of the eligible monthly income of the appropriate size household as determined under *N.J.A.C. 5:80-26.4*, as may be amended and supplemented; provided, however, that the price shall be subject to the affordability average requirement of *N.J.A.C. 5:80-26.3*, as may be amended and supplemented.
8. The initial rent for a restricted rental unit shall be calculated so as not to exceed 30% of the eligible monthly income of the appropriate household size as determined under *N.J.A.C. 5:80-26.4*, as may be amended and supplemented; provided, however, that the rent shall be subject to the affordability average requirement of *N.J.A.C. 5:80-26.3*, as may be amended and supplemented.
9. The price of owner-occupied low- and moderate-income units may increase annually based on the percentage increase in the regional median income limit for each housing region. In no event shall the maximum resale price established by the administrative agent be lower than the last recorded purchase price.

Millburn Township Committee Meeting Minutes

Income limits for all units for which income limits are not already established through a federal program exempted from the Uniform Housing Affordability Controls pursuant to N.J.A.C. 5:80-26.1 shall be updated by the Township annually within 30 days of the publication of determinations of median income by HUD as follows:

- (a) Regional income limits shall be established for the Region 2 based on the median income by household size, which shall be established by a regional weighted average of the uncapped Section 8 income limits published by HUD. To compute this regional income limit, the HUD determination of median county income for a family of four is multiplied by the estimated households within the county according to the most recent decennial Census. The resulting product for each county within the housing region is summed. The sum is divided by the estimated total households from the most recent decennial Census in Region 2. This quotient represents the regional weighted average of median income for a household of four. The income limit for a moderate-income unit for a household of four shall be 80 percent of the regional weighted average median income for a family of four. The income limit for a low-income unit for a household of four shall be 50 percent of the HUD determination of the regional weighted average median income for a family of four. The income limit for a very-low income unit for a household of four shall be 30 percent of the regional weighted average median income for a family of four. These income limits shall be adjusted by household size based on multipliers used by HUD to adjust median income by household size. In no event shall the income limits be less than those for the previous year.
- (b) The income limits calculated each year shall be the result of applying the percentages set forth in paragraph (a) above to HUD's determination of median income for the relevant fiscal year, and shall be utilized until the Township updates the income limits after HUD has published revised determinations of median income for the next fiscal year.
- (c) The Regional Asset Limit used in determining an applicant's eligibility for affordable housing pursuant to N.J.A.C. 5:80-26.16(b)3 shall be calculated by the Township annually by taking the percentage increase of the income limits calculated pursuant to paragraph (a) above over the previous year's income limits, and applying the same percentage increase to the Regional Asset Limit from the prior year. In no event shall the Regional Asset Limit be less than that for the previous year.

- 10. The rent levels of very-low-, low- and moderate-income units may be increased annually based on the percentage increase in the Housing Consumer Price Index for the Northeast Urban Area, upon its publication for the prior calendar year. This increase shall not exceed nine percent in any one year. Rents for units constructed pursuant to low income housing tax credit regulations shall be indexed pursuant to the regulations governing low income housing tax credits.
- 11. Tenant-paid utilities that are included in the utility allowance shall be so stated in the lease and shall be consistent with the utility allowance approved by DCA for its Section 8 program.

h. Condominium and Homeowners Association Fees.

- 1. For any affordable housing unit that is part of a condominium association and/or homeowner's association, the Master Deed shall reflect that the association fee assessed for each affordable housing unit shall be established at 100% of the market rate fee.

Millburn Township Committee Meeting Minutes

i. Affirmative Marketing.

1. The Township shall adopt by resolution an Affirmative Marketing Plan, subject to approval of the Superior Court, compliant with N.J.A.C. 5:80-26.15, as may be amended and supplemented.
2. The affirmative marketing plan is a regional marketing strategy designed to attract buyers and/or renters of all majority and minority groups, regardless of race, creed, color, national origin, ancestry, marital or familial status, gender, affectional or sexual orientation, disability, age or number of children to housing units which are being marketed by a developer, sponsor or owner of affordable housing. The affirmative marketing plan is also intended to target those potentially eligible persons who are least likely to apply for affordable units in that region. It is a continuing program that directs all marketing activities toward COAH Housing Region 2 and covers the period of deed restriction.
3. The affirmative marketing plan shall provide a regional preference for all households that live and/or work in COAH Housing Region 2, comprised of Essex, Morris, Union, and Warren.
4. The development's Administrative Agent shall assure the affirmative marketing of all affordable units is consistent with the Affirmative Marketing Plan for the municipality.
5. The Township shall add to the list of community and regional organizations in its affirmative marketing plan, pursuant to N.J.A.C. 5:80-26.15(f)(5), Fair Share Housing Center, the New Jersey State Conference of the NAACP, the Latino Action Network, , the Morris County Chapter of the NAACP, Newark NAACP, East Orange NAACP, Housing Partnership for Morris County, Community Access Unlimited, Inc., Northwest New Jersey Community Action Program, Inc. (NORWESCAP), Homeless Solutions of Morristown, the Supportive Housing Association and the New Jersey Housing Resource Center, and shall, as part of its regional affirmative marketing strategies during its implementation of this plan, provide notice to those organizations of all available affordable housing units. The Township also agrees to require any other entities, including developers or persons or companies retained to do affirmative marketing, to comply with this paragraph.
5. In implementing the affirmative marketing plan, the Administrative Agent shall provide a list of counseling services to low- and moderate-income applicants on subjects such as budgeting, credit issues, mortgage qualification, rental lease requirements, and landlord/tenant law.
6. The affirmative marketing process for available affordable units shall begin at least four months prior to the expected date of occupancy.
7. The costs of advertising and affirmative marketing of the affordable units shall be the responsibility of the developer, sponsor or owner, unless otherwise determined or agreed to by the Township of Millburn.

j. Occupancy Standards.

1. In referring certified households to specific restricted units, to the extent feasible, and without causing an undue delay in occupying the unit, the Administrative Agent shall strive to:
 - (a) Provide an occupant for each bedroom;

Millburn Township Committee Meeting Minutes

- (b) Provide separate bedrooms for parents and children;
 - (c) Provide children of different sexes with separate bedrooms; and
 - (d) Prevent more than two persons from occupying a single bedroom.
 - 2. Additional provisions related to occupancy standards (if any) shall be provided in the municipal Operating Manual.
- k. Selection of Occupants of Affordable Housing Units.
- 1. The administrative agent shall use a random selection process to select occupants of low- and moderate- income housing.
 - 2. A waiting list of all eligible candidates will be maintained in accordance with the provisions of N.J.A.C. 5:80-26 et seq.
- l. Control Periods for Restricted Ownership Units and Enforcement Mechanisms.
- 1. Control periods for restricted ownership units shall be in accordance with *N.J.A.C. 5:80-26.5*, and each restricted ownership unit shall remain subject to the controls on affordability for a period of at least 30 years, until the municipality takes action to release the controls on affordability.
 - 2. Rehabilitated owner-occupied housing units that are improved to code standards shall be subject to affordability controls for a period of 10 years.
 - 3. The affordability control period for a restricted ownership unit shall commence on the date the initial certified household takes title to the unit.
 - 4. The affordability controls set forth in this Ordinance shall remain in effect despite the entry and enforcement of any judgment of foreclosure with respect to restricted ownership units.
 - 5. A restricted ownership unit shall be required to obtain a Continuing Certificate of Occupancy or a certified statement from the Construction Official stating that the unit meets all code standards upon the first transfer of title that follows the expiration of the applicable minimum control period provided under *N.J.A.C. 5:80-26.5(a)*, as may be amended and supplemented.
 - 6. At the time of the initial sale of the unit, the initial purchaser shall execute and deliver to the Administrative Agent a recapture note obligating the purchaser (as well as the purchaser's heirs, successors and assigns) to repay, upon the first non-exempt sale after the unit's release from the restrictions set forth in this Ordinance, an amount equal to the difference between the unit's non-restricted fair market value and its restricted price, and the recapture note shall be secured by a recapture lien evidenced by a duly recorded mortgage on the unit.
- m. Price Restrictions for Restricted Ownership Units, Homeowner Association Fees and Resale Prices.
- 1. Price restrictions for restricted ownership units shall be in accordance with *N.J.A.C. 5:80-26.1*, as may be amended and supplemented, including:
 - 2. The initial purchase price for a restricted ownership unit shall be approved by the Administrative Agent.
 - 3. The Administrative Agent shall approve all resale prices, in writing and in

Millburn Township Committee Meeting Minutes

advance of the resale, to assure compliance with the foregoing standards.

4. The method used to determine the condominium association fee amounts and special assessments shall be indistinguishable between the low- and moderate-income unit owners and the market unit owners.
5. The owners of restricted ownership units may apply to the Administrative Agent to increase the maximum sales price for the unit on the basis of capital improvements. Eligible capital improvements shall be those that render the unit suitable for a larger household or the addition of a bathroom.

n. Buyer Income Eligibility.

1. Buyer income eligibility for restricted ownership units shall be in accordance with N.J.A.C. 5:80-26.1, as may be amended and supplemented, such that low-income ownership units shall be reserved for households with a gross household income less than or equal to 50% of median income and moderate-income ownership units shall be reserved for households with a gross household income less than 80% of median income.
2. The Administrative Agent shall certify a household as eligible for a restricted ownership unit when the household is a low-income household or a moderate-income household, as applicable to the unit, and the estimated monthly housing cost for the particular unit (including principal, interest, taxes, homeowner and private mortgage insurance and condominium or homeowner association fees, as applicable) does not exceed 33% of the household's certified monthly income.
3. Notwithstanding the foregoing, the Administrative Agent may, upon approval by the Township Committee, and subject to the Court's approval, permit a moderate-income purchaser to buy a low-income unit if and only if the Administrative Agent can demonstrate that there is an insufficient number of eligible low-income purchasers in the housing region to permit prompt occupancy of the unit and all other reasonable efforts to attract a low income purchaser, including pricing and financing incentives, have failed. Any such low-income unit that is sold to a moderate-income household shall retain the required pricing and pricing restrictions for a low-income unit.
4. A certified household that purchases a restricted ownership unit must occupy it as the certified household's principal residence and shall not lease the unit; provided, however, that the Administrative Agent may permit the owner of a restricted ownership unit, upon application and a showing of hardship, to lease the restricted unit to another certified household for a period not to exceed one year.

o. Limitations on indebtedness secured by ownership unit; subordination.

1. Prior to incurring any indebtedness to be secured by a restricted ownership unit, the administrative agent shall determine in writing that the proposed indebtedness complies with the provisions of this section.
2. With the exception of original purchase money mortgages, during a control period neither an owner nor a lender shall at any time cause or permit the total indebtedness secured by a restricted ownership unit to exceed 95% of the maximum allowable resale price of that unit, as such price is determined by the administrative agent in accordance with N.J.A.C.5:80-26.6(b).

p. Capital Improvements to Ownership Units.

Millburn Township Committee Meeting Minutes

1. The owners of restricted ownership units may apply to the Administrative Agent to increase the maximum sales price for the unit on the basis of capital improvements made since the purchase of the unit. Eligible capital improvements shall be those that render the unit suitable for a larger household or that add an additional bathroom. In no event shall the maximum sales price of an improved housing unit exceed the limits of affordability for the larger household.
 2. Upon the resale of a restricted ownership unit, all items of property that are permanently affixed to the unit or were included when the unit was initially restricted (for example, refrigerator, range, washer, dryer, dishwasher, wall-to-wall carpeting) shall be included in the maximum allowable resale price. Other items may be sold to the purchaser at a reasonable price that has been approved by the Administrative Agent at the time of the signing of the agreement to purchase. The purchase of central air conditioning installed subsequent to the initial sale of the unit and not included in the base price may be made a condition of the unit resale provided the price, which shall be subject to 10-year, straight-line depreciation, has been approved by the Administrative Agent. Unless otherwise approved by the Administrative Agent, the purchase of any property other than central air conditioning shall not be made a condition of the unit resale. The owner and the purchaser must personally certify at the time of closing that no unapproved transfer of funds for the purpose of selling and receiving property has taken place at the time of or as a condition of resale.
- q. Control Periods for Restricted Rental Units.
1. Control periods for restricted rental units shall be in accordance with N.J.A.C. 5:80-26.11, and each restricted rental unit shall remain subject to the controls on affordability for a period of at least 30 years, until the municipality takes action to release the controls on affordability.
 - (a) Restricted rental units created as part of developments receiving nine percent (9%) Low Income Housing Tax Credits must comply with a control period of not less than a 30-year compliance period plus a 15-year extended use period.
 2. Rehabilitated renter-occupied housing units that are improved to code standards shall be subject to affordability controls for a period of 10 years.
 3. Deeds of all real property that include restricted rental units shall contain deed restriction language. The deed restriction shall have priority over all mortgages on the property, and the deed restriction shall be filed by the developer or seller with the records office of the County of Essex. A copy of the filed document shall be provided to the Administrative Agent within 30 days of the receipt of a Certificate of Occupancy.
 4. A restricted rental unit shall remain subject to the affordability controls of this Ordinance, despite the occurrence of any of the following events:
 - (a) Sublease or assignment of the lease of the unit;
 - (b) Sale or other voluntary transfer of the ownership of the unit; or
 - (c) The entry and enforcement of any judgment of foreclosure.
- r. Price Restrictions for Rental Units; Leases.
1. A written lease shall be required for all restricted rental units, except for units in an assisted living residence, and tenants shall be responsible for

Millburn Township Committee Meeting Minutes

security deposits and the full amount of the rent as stated on the lease. A copy of the current lease for each restricted rental unit shall be provided to the Administrative Agent.

2. No additional fees or charges shall be added to the approved rent (except, in the case of units in an assisted living residence, to cover the customary charges for food and services) without the express written approval of the Administrative Agent.
3. Application fees (including the charge for any credit check) shall not exceed 5% of the monthly rent of the applicable restricted unit and shall be payable to the Administrative Agent to be applied to the costs of administering the controls applicable to the unit as set forth in this Ordinance.

s. Tenant Income Eligibility.

1. Tenant income eligibility shall be in accordance with N.J.A.C. 5:80-26.13, as may be amended and supplemented, and shall be determined as follows:
 - (a) Very-low-income rental units shall be reserved for households with a gross household income less than or equal to 30% of median income.
 - (b) Low-income rental units shall be reserved for households with a gross household income less than or equal to 50% of median income.
 - (c) Moderate-income rental units shall be reserved for households with a gross household income less than 80% of median income.
2. The Administrative Agent shall certify a household as eligible for a restricted rental unit when the household is a very-low-income, low-income household or a moderate-income household, as applicable to the unit, and the rent proposed for the unit does not exceed 35% (40% for age-restricted units) of the household's eligible monthly income as determined pursuant to N.J.A.C. 5:80-26.16, as may be amended and supplemented; provided, however, that this limit may be exceeded if one or more of the following circumstances exists:
 - (a) The household currently pays more than 35% (40% for households eligible for age-restricted units) of its gross household income for rent, and the proposed rent will reduce its housing costs;
 - (b) The household has consistently paid more than 35% (40% for households eligible for age-restricted units) of eligible monthly income for rent in the past and has proven its ability to pay;
 - (c) The household is currently in substandard or overcrowded living conditions;
 - (d) The household documents the existence of assets with which the household proposes to supplement the rent payments; or
 - (e) The household documents proposed third-party assistance from an outside source such as a family member in a form acceptable to the Administrative Agent and the owner of the unit.
3. The applicant shall file documentation sufficient to establish the existence of the circumstances in r.2.(a) through e above with the Administrative

Millburn Township Committee Meeting Minutes

Agent, who shall counsel the household on budgeting.

t. Conversions.

1. Each affordable housing unit created through the conversion of a non-residential structure shall be considered a new housing unit and shall be subject to the affordability controls for a new housing unit.

u. Alternative Living Arrangements.

1. The administration of an alternative living arrangement shall be in compliance with N.J.A.C. 5:93-5.8 and UHAC, with the following exceptions:
 - (a) Affirmative marketing (N.J.A.C. 5:80-26.15), provided, however, that the units or bedrooms may be affirmatively marketed by the provider in accordance with an alternative plan approved by the Court;
 - (b) Affordability average and bedroom distribution (N.J.A.C. 5:80-26.3).
2. With the exception of units established with capital funding through a 20-year operating contract with the Department of Human Services, Division of Developmental Disabilities, alternative living arrangements shall have at least 30 year controls on affordability in accordance with UHAC, unless an alternative commitment is approved by the Court.
3. The service provider for the alternative living arrangement shall act as the Administrative Agent for the purposes of administering the affirmative marketing and affordability requirements for the alternative living arrangement.

§ 501.4 Municipal Housing Liaison.

- a. The position of Municipal Housing Liaison for the Township of Millburn is hereby established. The Municipal Housing Liaison shall be appointed by duly adopted resolution of the Township Mayor and Council and be subject to the approval by the Superior Court.
- b. The Municipal Housing Liaison must be either a full-time or part-time employee of the Township of Millburn.
- c. The Municipal Housing Liaison must meet the requirements for qualifications, including initial and periodic training found in *N.J.A.C. 5:93*.
- d. The Municipal Housing Liaison shall be responsible for oversight and administration of the affordable housing program for the Township of Millburn, including the following responsibilities which may not be contracted out to the Administrative Agent:
 1. Serving as the municipality's primary point of contact for all inquiries from the State, affordable housing providers, Administrative Agents and interested households;
 2. When applicable, supervising any contracting Administrative Agent.
 3. Monitoring the status of all restricted units in the Township of Millburn's Fair Share Plan;
 4. Compiling, verifying and submitting annual reports as required by the

Millburn Township Committee Meeting Minutes

Superior Court;

- 5. Coordinating meetings with affordable housing providers and Administrative Agents, as applicable; and
- 6. Attending continuing education opportunities on affordability controls, compliance monitoring and affirmative marketing as offered or approved by the Superior Court.

§ 501.5 Administrative Agent.

- a. The Township shall designate by resolution of the Township Mayor and Council, one or more Administrative Agents to administer newly constructed affordable units in accordance with *N.J.A.C. 5:93* and UHAC.
- b. Developers of affordable housing units shall utilize the Township’s appointed administrative agent for the administration of affordable units, unless specifically authorized to do otherwise by the Township Mayor and Council or Planning or Zoning Board. All administration costs, including those of the administrative agent, shall be paid by the developer.
- c. An Operating Manual shall be provided by the Administrative Agent(s) to be adopted by resolution of the governing body and subject to approval of the Superior Court. The Operating Manuals shall be available for public inspection in the Office of the Municipal Clerk and in the office(s) of the Administrative Agent(s).
- d. The Administrative Agent shall perform the duties and responsibilities of an administrative agent as are set forth in UHAC and which are described in full detail in the Operating Manual, including those set forth in *N.J.A.C. 5:80-26.14, 16 and 18* thereof, which includes:
 - 1. Attending continuing education opportunities on affordability controls, compliance monitoring, and affirmative marketing as offered or approved by the Superior Court;
 - 2. Affirmative Marketing;
 - 3. Household Certification;
 - 4. Affordability Controls;
 - 5. Records retention;
 - 6. Resale and re-rental;
 - 7. Processing requests from unit owners; and
 - 8. Enforcement, although the ultimate responsibility for retaining controls on the units rests with the municipality.
 - 9. The Administrative Agent shall, as delegated by the Township Mayor and Committee, have the authority to take all actions necessary and appropriate to carry out its responsibilities, hereunder.

§ 501.6 Enforcement of Affordable Housing Regulations.

- a. Upon the occurrence of a breach of any of the regulations governing the affordable unit by an Owner, Developer or Tenant, the municipality shall have all remedies provided at law or equity, including but not limited to foreclosure, tenant eviction, municipal fines, a requirement for household recertification, acceleration of all sums due under a mortgage, recoupment of any funds from a sale in the violation of the regulations, injunctive relief to prevent further violation of the regulations,

Millburn Township Committee Meeting Minutes

entry on the premises, and specific performance.

- b. After providing written notice of a violation to an Owner, Developer or Tenant of a low- or moderate-income unit and advising the Owner, Developer or Tenant of the penalties for such violations, the municipality may take the following action against the Owner, Developer or Tenant for any violation that remains uncured for a period of 60 days after service of the written notice:
 - 1. The municipality may file a court action pursuant to *N.J.S.A. 2A:58-11* alleging a violation, or violations, of the regulations governing the affordable housing unit. If the Owner, Developer or Tenant is found by the court to have violated any provision of the regulations governing affordable housing units the Owner, Developer or Tenant shall be subject to one or more of the following penalties, at the discretion of the court:
 - (a) A fine of not more than \$500.00 or imprisonment for a period not to exceed 90 days, or both. Each and every day that the violation continues or exists shall be considered a separate and specific violation of these provisions and not as a continuing offense;
 - (b) In the case of an Owner who has rented his or her low- or moderate-income unit in violation of the regulations governing affordable housing units, payment into the Township of Millburn Affordable Housing Trust Fund of the gross amount of rent illegally collected;
 - (c) In the case of an Owner who has rented his or her low- or moderate-income unit in violation of the regulations governing affordable housing units, payment of an innocent tenant's reasonable relocation costs, as determined by the court.
 - 2. The municipality may file a court action in the Superior Court seeking a judgment, which would result in the termination of the Owner's equity or other interest in the unit, in the nature of a mortgage foreclosure. Any judgment shall be enforceable as if the same were a judgment of default of the First Purchase Money Mortgage and shall constitute a lien against the low- and moderate-income unit.
- c. Such judgment shall be enforceable, at the option of the municipality, by means of an execution sale by the Sheriff, at which time the low- and moderate-income unit of the violating Owner shall be sold at a sale price which is not less than the amount necessary to fully satisfy and pay off any First Purchase Money Mortgage and prior liens and the costs of the enforcement proceedings incurred by the municipality, including attorney's fees. The violating Owner shall have the right to possession terminated as well as the title conveyed pursuant to the Sheriff's sale.
- d. The proceeds of the Sheriff's sale shall first be applied to satisfy the First Purchase Money Mortgage lien and any prior liens upon the low- and moderate-income unit. The excess, if any, shall be applied to reimburse the municipality for any and all costs and expenses incurred in connection with either the court action resulting in the judgment of violation or the Sheriff's sale. In the event that the proceeds from the Sheriff's sale are insufficient to reimburse the municipality in full as aforesaid, the violating Owner shall be personally responsible for and to the extent of such deficiency, in addition to any and all costs incurred by the municipality in connection with collecting such deficiency. In the event that a surplus remains after satisfying all of the above, such surplus, if any, shall be placed in escrow by the municipality for the Owner and shall be held in such escrow for a maximum period of two years or until such earlier time as the Owner shall make a claim with the municipality for such. Failure of the Owner to claim such balance within the two-year period shall automatically result in a forfeiture of such balance to the municipality. Any interest accrued or earned on such balance while being held in escrow shall belong to and shall be paid to the municipality, whether such balance

Millburn Township Committee Meeting Minutes

shall be paid to the Owner or forfeited to the municipality.

- e. Foreclosure by the municipality due to violation of the regulations governing affordable housing units shall not extinguish the restrictions of the regulations governing affordable housing units as the same apply to the low- and moderate-income unit. Title shall be conveyed to the purchaser at the Sheriff's sale, subject to the restrictions and provisions of the regulations governing the affordable housing unit. The Owner determined to be in violation of the provisions of this plan and from whom title and possession were taken by means of the Sheriff's sale shall not be entitled to any right of redemption.
- f. If there are no bidders at the Sheriff's sale, or if insufficient amounts are bid to satisfy the First Purchase Money Mortgage and any prior liens, the municipality may acquire title to the low- and moderate-income unit by satisfying the First Purchase Money Mortgage and any prior liens and crediting the violating owner with an amount equal to the difference between the First Purchase Money Mortgage and any prior liens and costs of the enforcement proceedings, including legal fees and the maximum resale price for which the low- and moderate-income unit could have been sold under the terms of the regulations governing affordable housing units. This excess shall be treated in the same manner as the excess which would have been realized from an actual sale as previously described.
- g. Failure of the low- and moderate-income unit to be either sold at the Sheriff's sale or acquired by the municipality shall obligate the Owner to accept an offer to purchase from any qualified purchaser which may be referred to the Owner by the municipality, with such offer to purchase being equal to the maximum resale price of the low- and moderate-income unit as permitted by the regulations governing affordable housing units.
- h. The Owner shall remain fully obligated, responsible and liable for complying with the terms and restrictions of governing affordable housing units until such time as title is conveyed from the Owner.

§ 501.7 Appeals. Appeals from all decisions of an Administrative Agent designated pursuant to this Ordinance shall be filed in writing with the Township.

Section II. Severability

If any section, part of any section, or clause or phrase of this ordinance is for any reason held to be invalid or unconstitutional, such decision shall not affect the remaining provisions of this ordinance. The governing body of the Township of Millburn declares that it would have passed the ordinance and each section and subsection thereof, irrespective of the fact that any one or more of the subsections, sentences, clauses or phrases may be declared unconstitutional or invalid.

Section III. Effective Date.

This ordinance shall take effect immediately upon passage and publication according to law.

Ordinance 2597-22

Mr. Wasserman brought forth Ordinance 2597-21 for public hearing. A brief explanatory statement about the ordinance was made.

Mayor Miggins opened the public hearing. No comments were presented, Mayor Miggins closed the public hearing.

Mr. Wasserman moved the ordinance to be taken up and passed on second reading. Mayor Miggins seconded the motion. Mayor Miggins requested a roll call vote.

Roll Call Vote: Ayes: Vinayak, Wasserman, Miggins
 Nays: Prupis, Thall Eglow

Millburn Township Committee Meeting Minutes

ORDINANCE NO. 2597-22

AN ORDINANCE AMENDING THE LAND USE ORDINANCE OF THE TOWNSHIP OF MILLBURN TO AMEND CHAPTER DRZ, DEVELOPMENT REGULATIONS AND ZONING ORDINANCE, TO REQUIRE AN AFFORDABLE HOUSING SET-ASIDE CONSISTENT WITH THE TOWNSHIP’S ADOPTED 2021 THIRD ROUND HOUSING ELEMENT AND FAIR SHARE PLAN

WHEREAS, the Township of Millburn executed a Settlement Agreement with Fair Share Housing Center on August 17, 2021 that determines the municipality’s affordable housing obligation and the preliminary compliance plan for how the obligation will be addressed; and

WHEREAS, the Settlement Agreement called for adoption of a mandatory set-aside ordinance in order to capture unanticipated affordable housing opportunities and to satisfy a portion of Millburn’s unmet need obligation; and

WHEREAS, the Township adopted a Third Round Housing Element and Fair Share Plan that also set forth adoption of a mandatory set-aside ordinance, consistent with the Settlement Agreement; and

NOW, THEREFORE, BE IT ORDAINED by the Mayor and Committee of the Township of Millburn, in the County of Essex and State of New Jersey as follows:

Section 1. Chapter DRZ, Article 5 Section DRZ-502 entitled “Mandatory Affordable Housing Set-Aside” is hereby created and shall be added to the Code to read as follows:

- a. A mandatory affordable housing set-aside requirement shall apply beginning with the effective date of this ordinance to any multi-family or attached dwelling residential development, including the residential portion of a mixed-use project, which consists of five (5) or more new residential units that becomes permissible through a “(d)1” use variance, a “d(5)” density variance increasing the permissible density at the site, a rezoning permitting multi-family or attached residential housing where not previously permitted, or a new or amended redevelopment plan as set forth below:
 - 1. The set aside of affordable units for all developments will be 20%.
 - 2. This requirement does not apply to any sites or specific zones otherwise identified in the Fair Share Plan, for which density and set-aside standards shall be governed by the specific standards set forth therein.
 - 3. For any such development for which the Township’s land use ordinances (e.g. zoning or an adopted Redevelopment Plan) already permit residential development as of the effective date of this Ordinance No. 2597-22, adopted April 5, 2022, this requirement shall only apply if the Township permits an increase of five (5) or more residential units beyond that which is currently permitted (e.g. zoning or an adopted Redevelopment Plan).
 - 4. The affordable units shall comply with the Township’s affordable housing regulations in §DRZ-501. This includes, but is not limited to, affordability controls of not less than thirty (30) years, proper distribution of one, two, and three bedroom affordable units, proper distribution of very-low, low and moderate income units, and affirmative marketing.
 - 5. A property shall not be permitted to be subdivided so as to avoid meeting this requirement. The Board may impose any reasonable conditions to ensure such compliance.
 - 6. Nothing in this subsection precludes the Township from imposing an affordable housing set aside in a development not required to have a set-aside pursuant to this subsection consistent with N.J.S.A. 52:27D-311(h) and other applicable law.
 - 7. This requirement does not create any entitlement for a property owner or applicant for a zoning amendment, variance, or adoption of a Redevelopment Plan or amended Redevelopment Plan in areas in need of redevelopment or rehabilitation, or for approval of any particular proposed project.

Section III. Repealer. All ordinances or Code provisions or parts thereof inconsistent with this Ordinance are hereby repealed to the extent of such inconsistency.

Section IV. Severability. If any section, subsection, paragraph, sentence or any other part of this ordinance is adjudged unconstitutional or invalid, such judgment shall not affect, impair or invalidate the remainder of this ordinance.

Section V. Effective Date. This ordinance shall take effect upon its passage and publication, as required by law.

Millburn Township Committee Meeting Minutes

Ordinance / Introduction

Ordinance 2598-22

Mr. Vinayak brought forth Ordinance 2598-22 for introduction. A brief explanatory statement about the ordinance was made by Mr. Laracy. Mr. Vinayak moved the ordinance to be taken up and passed on first reading noting that the public hearing would take place on May 3, 2022. Mr. Wasserman seconded the motion.

Roll Call Vote: All Ayes

ORDINANCE NO. 2598-22

CALENDAR YEAR 2022

**ORDINANCE TO EXCEED THE MUNICIPAL BUDGET APPROPRIATION LIMITS
AND TO ESTABLISH A CAP BANK (N.J.S.A. 40A:4 45.14)**

WHEREAS, the Local Government Cap Law, N.J.S. 40A:4-45.1 et seq., provides that in the preparation of its annual budget, a municipality shall limit any increase in said budget to 1% unless authorized by ordinance to increase it to 3.5% over the previous year's final appropriations, subject to certain exceptions; and,

WHEREAS, N.J.S.A. 40A:4-45.15a provides that a municipality may, when authorized by ordinance, appropriate the difference between the amount of its actual final appropriation and the 3.5% percentage rate as an exception to its final appropriations in either of the next two succeeding years; and,

WHEREAS, the Governing Body of the Township of Millburn, in the County of Essex, finds it advisable and necessary to increase its CY 2022 budget by up to 3.5% over the previous year's final appropriations, in the interest of promoting the health, safety and welfare of the citizens; and,

WHEREAS, , the Township Committee hereby determines that a 3.5% increase in the budget for said year, is estimated to be \$1,621,709.95 in excess of the increase in final appropriations otherwise permitted by the Local Government Cap Law, is advisable and necessary; and

WHEREAS, the Governing Body hereby determines that any amount authorized hereinabove that is not appropriated, as part of the final budget shall be retained as an exception to final appropriation in either of the next two succeeding years.

NOW, THEREFORE, BE IT ORDAINED by the Governing Body of the Township of Millburn, in the County of Essex, a majority of the full authorized of this governing body affirmatively concurring, that, in the CY 2022 budget year, the final appropriations of the Township of Millburn shall, in accordance with this ordinance and N.J.S.A. 40: 45.14, be increased by 3.5%, amounting to \$1,621,709.95 and that the CY 2022 municipal budget for the Township of Millburn be approved and adopt accordance with ordinance; and,

BE IF FURTHER ORDAINED, that any amount authorized hereinabove that is not appropriated as part of the final budget shall be retained as an exception to final appropriation in either of the next two succeeding years; and,

BE IT FURTHER ORDAINED, with the that a Director certified copy of this ordinance as of the Division of Local Government Services within 5 days of introduction; and,

BE IF FURTHER ORDAINED that a certified copy adoption, with the recorded vote included thereon be within 5 days after such adoption of this ordinance upon field with said Director.

Ordinance 2599-22

Ms. Thall Eglow brought forth Ordinance 2599-22 for introduction. A brief explanatory statement about the ordinance was made by Mr. McDonald. Ms. Thall Eglow moved the ordinance to be taken up and passed on first reading noting that the public hearing would take place on May 3, 2022. Mr. Wasserman seconded the motion. Ms. Thall Eglow requested a roll call vote.

Roll Call Vote: All Ayes

April 5, 2022

Millburn Township Committee Meeting Minutes

ORDINANCE NO. 2599-22

ORDINANCE REVISING AND SUPPLEMENTING THE SALARIES AND SALARY RANGES OF OFFICES AND POSITIONS IN THE CLASSIFIED AND UNCLASSIFIED CIVIL SERVICE POSITIONS OF THE TOWNSHIP OF MILLBURN, COUNTY OF ESSEX FOR THE YEAR 2021-2025

***STATEMENT OF PURPOSE:** The purpose of this ordinance is to amend the salaries and salary ranges of offices and positions in the classified and unclassified civil service positions of the Township of Millburn for the years 2021-2025. Some ranges are established by collective bargaining agreements with unionized employees of the Township. Additionally, some agreements do not extend to 2025 and will have no salary range shown for that year.*

BE IT ORDAINED BY THE TOWNSHIP COMMITTEE OF THE TOWNSHIP OF MILLBURN IN THE COUNTY OF ESSEX, STATE OF NEW JERSEY, as follows:

NON - UNION SALARY ORDINANCE

2021-2024

	2021		2022		2023		2024									
POSITION	Salary Range		Salary Range		Salary Range		Salary Range									
General																
Township Committee Member	\$	-	\$	7,500	\$	-	\$	7,500	\$	-	\$	7,500				
Judge, Municipal Court	\$	-	\$	35,677	\$	-	\$	36,569	\$	-	\$	37,483	\$	-	\$	38,420
Municipal Prosecutor (P/T) Per Yr.	\$	-	\$	25,568	\$	-	\$	26,207	\$	-	\$	26,863	\$	-	\$	26,863
Municipal Public Defender (P/T) Per Yr.	\$	-	\$	11,892	\$	-	\$	12,189	\$	-	\$	12,494	\$	-	\$	12,494
Finance																
Chief Financial Officer	\$	116,870	\$	178,151	\$	119,792	\$	182,605	\$	122,787	\$	187,170	\$	125,856	\$	191,849
Asst. Municipal Comptroller	\$	68,749	\$	106,582	\$	70,467	\$	109,246	\$	72,229	\$	111,977	\$	74,035	\$	114,777
Asst. Budget Examiner	\$	56,275	\$	85,715	\$	57,681	\$	87,857	\$	59,123	\$	90,054	\$	60,602	\$	92,305
Payroll Clerk	\$	61,241	\$	93,136	\$	62,772	\$	95,464	\$	64,341	\$	97,851	\$	65,950	\$	100,297
Principal Account Clerk	\$	56,275	\$	85,715	\$	57,681	\$	87,857	\$	59,123	\$	90,054	\$	60,602	\$	92,305
Qualified Purchasing Agent	\$	500	\$	1,000	\$	500	\$	1,000	\$	500	\$	1,000	\$	500	\$	1,000
Administration																
Business Administrator	\$	149,205	\$	227,099	\$	152,935	\$	232,776	\$	156,758	\$	238,595	\$	160,677	\$	244,560
Asst. Business Administrator	\$	83,094	\$	126,510	\$	85,171	\$	129,673	\$	87,301	\$	132,915	\$	89,483	\$	136,238
Administrative Analyst	\$	49,470	\$	78,334	\$	50,707	\$	80,292	\$	51,974	\$	82,300	\$	53,274	\$	84,357
Public Information Officer	\$	56,274	\$	85,715	\$	57,681	\$	87,858	\$	59,123	\$	90,054	\$	60,601	\$	92,305

April 5, 2022

Millburn Township Committee Meeting Minutes

Municipal Clerk	\$ 91,448	\$ 139,451	\$ 93,734	\$ 142,937	\$ 96,078	\$ 146,511	\$ 98,480	\$ 150,173
Asst. Municipal Clerk	\$ 57,947	\$ 99,155	\$ 59,396	\$ 101,634	\$ 60,880	\$ 104,175	\$ 62,402	\$ 106,779
Clerical								
Keyboarding Clerk 4	\$ 65,105	\$ 99,155	\$ 66,733	\$ 101,634	\$ 68,401	\$ 104,175	\$ 70,111	\$ 106,779
Keyboarding Clerk 3	\$ 60,625	\$ 93,136	\$ 62,140	\$ 95,464	\$ 63,694	\$ 97,851	\$ 65,286	\$ 100,297
Administrative Clerk	\$ 56,293	\$ 85,716	\$ 57,700	\$ 87,859	\$ 59,143	\$ 90,055	\$ 60,621	\$ 92,306
Keyboarding Clerk 2	\$ 48,535	\$ 74,009	\$ 49,749	\$ 75,859	\$ 50,992	\$ 77,756	\$ 52,267	\$ 79,700
Keyboarding Clerk 1	\$ 39,957	\$ 60,961	\$ 40,956	\$ 62,486	\$ 41,980	\$ 64,048	\$ 43,029	\$ 65,649
Keyboarding Clerk 2 (P/T) Per Day	\$ 147.60	\$ 207.13	\$ 151.29	\$ 212.31	\$ 155.07	\$ 217.62	\$ 158.95	\$ 223.06
Keyboarding Clerk 1 (P/T) Per Day	\$ 121.50	\$ 170.59	\$ 124.54	\$ 174.86	\$ 127.65	\$ 179.23	\$ 130.85	\$ 183.71
Asst. Mun. Clerk (P/T) Per Day	\$ 198.07	\$ 328.11	\$ 203.03	\$ 336.31	\$ 208.10	\$ 344.72	\$ 213.30	\$ 353.34
Health								
Health Officer	\$ 10,996	\$ 139,451	\$ 11,271	\$ 142,937	\$ 11,553	\$ 146,511	\$ 11,841	\$ 150,174
Reg Vital Stat/Sr Clerk Typist	\$ 56,275	\$ 85,717	\$ 57,681	\$ 87,860	\$ 59,123	\$ 90,056	\$ 60,602	\$ 92,308
Sanitary Inspector	\$ 71,719	\$ 109,310	\$ 73,512	\$ 112,043	\$ 75,349	\$ 114,844	\$ 77,233	\$ 117,715
Public Health Nurse Sup (P/T) Per Hr	\$ 51.59	\$ 58.67	\$ 52.88	\$ 60.13	\$ 54.20	\$ 61.64	\$ 55.56	\$ 63.18
Sanitary Inspector (P/T) Per Hr	\$ 51.59	\$ 58.67	\$ 52.88	\$ 60.13	\$ 54.20	\$ 61.64	\$ 55.56	\$ 63.18
Public Health Nurse (P/T) Per Hr	\$ 39.34	\$ 44.72	\$ 40.32	\$ 45.83	\$ 41.33	\$ 46.98	\$ 42.36	\$ 48.15
Grad. Nurse (PH) (P/T) Per Hr	\$ 36.86	\$ 41.92	\$ 37.78	\$ 42.97	\$ 38.72	\$ 44.04	\$ 39.69	\$ 45.14
Health Educator (P/T) Per Hour	\$ 51.59	\$ 58.67	\$ 52.88	\$ 60.13	\$ 54.20	\$ 61.64	\$ 55.56	\$ 63.18
Tax Assessor								
Assessor	\$ 87,234	\$ 132,835	\$ 89,415	\$ 136,156	\$ 91,651	\$ 139,560	\$ 93,942	\$ 143,049
Assistant Assessor	\$ 65,105	\$ 99,155	\$ 66,733	\$ 101,634	\$ 68,401	\$ 104,175	\$ 70,111	\$ 106,779
Tax Collector								
Municipal Tax Collector	\$ 87,234	\$ 132,835	\$ 89,415	\$ 136,156	\$ 91,651	\$ 139,560	\$ 93,942	\$ 143,049
Asst. Municipal Tax Collector	\$ 57,947	\$ 99,155	\$ 59,396	\$ 101,634	\$ 60,880	\$ 104,175	\$ 62,402	\$ 106,779
Municipal Court								
Municipal Court Administrator	\$ 87,234	\$ 117,633	\$ 89,415	\$ 120,574	\$ 91,651	\$ 123,589	\$ 93,942	\$ 126,678
Dep. Mun. Court Administrator	\$ 61,241	\$ 77,188	\$ 62,772	\$ 79,118	\$ 64,341	\$ 81,096	\$ 65,950	\$ 83,123
Violations Clerk	\$ 48,536	\$ 74,009	\$ 49,750	\$ 75,859	\$ 50,993	\$ 77,756	\$ 52,268	\$ 79,700
Building Inspections								
Construction Official	\$ 96,546	\$ 150,869	\$ 98,960	\$ 154,641	\$ 101,434	\$ 158,507	\$ 103,970	\$ 162,470

April 5, 2022

Millburn Township Committee Meeting Minutes

Zoning Officer	\$ 65,105	\$ 99,155	\$ 66,733	\$ 101,634	\$ 68,401	\$ 104,175	\$ 70,111	\$ 106,779
Bldg. Sub-Code Official	\$ 71,719	\$ 109,310	\$ 73,512	\$ 112,043	\$ 75,349	\$ 114,844	\$ 77,233	\$ 117,715
Electrical Sub-Code Inspector (P/T)	\$ 33,369	\$ 37,935	\$ 34,203	\$ 38,883	\$ 35,059	\$ 39,855	\$ 35,935	\$ 40,852
Plumbing Sub-Code Inspector (P/T)	\$ 30,766	\$ 34,971	\$ 31,535	\$ 35,845	\$ 32,323	\$ 36,742	\$ 33,132	\$ 37,660
Code Enforcement Officer (F/T)	\$ 48,536	\$ 74,009	\$ 49,750	\$ 75,859	\$ 50,993	\$ 77,756	\$ 52,268	\$ 79,700
Code Enforcement Officer (P/T)	\$ 30,766	\$ 34,971	\$ 31,535	\$ 35,845	\$ 32,323	\$ 36,742	\$ 33,132	\$ 37,660
Municipal Services								
Municipal Engineer	\$ 135,361	\$ 206,100	\$ 138,745	\$ 211,253	\$ 142,214	\$ 216,534	\$ 145,769	\$ 221,948
Asst. Municipal Engineer	\$ 54,715	\$ 119,357	\$ 56,083	\$ 122,340	\$ 57,485	\$ 125,399	\$ 58,922	\$ 128,534
Shade Tree								
Forester	\$ 79,310	\$ 120,285	\$ 81,293	\$ 123,292	\$ 83,325	\$ 126,375	\$ 85,408	\$ 129,534
Forester (P/T) - Per Hr.								
Tree Foreman (M/W)	\$ 85,638	\$ 107,668	\$ 87,779	\$ 110,360	\$ 89,973	\$ 113,119	\$ 92,222	\$ 115,947
Asst Tree Foreman (M/W)	\$ 83,523	\$ 101,088	\$ 85,611	\$ 103,616	\$ 87,751	\$ 106,206	\$ 89,945	\$ 108,861
Public Works								
Public Works Superintendent	\$ 105,768	\$ 160,898	\$ 108,412	\$ 164,921	\$ 111,122	\$ 169,044	\$ 113,900	\$ 173,270
Assistant Superintendent of Public Works	\$ 97,138	\$ 136,432	\$ 99,566	\$ 139,843	\$ 102,055	\$ 143,339	\$ 104,607	\$ 146,922
Roads								
Streets & Sewer Foreman (M/W)	\$ 85,638	\$ 103,488	\$ 87,779	\$ 106,075	\$ 89,973	\$ 108,727	\$ 92,222	\$ 111,445
Asst. Sewer Foreman (M/W)	\$ 83,523	\$ 97,163	\$ 85,611	\$ 99,592	\$ 87,751	\$ 102,082	\$ 89,945	\$ 104,634
Asst. Street Foreman (M/W)	\$ 83,523	\$ 97,163	\$ 85,611	\$ 99,592	\$ 87,751	\$ 102,082	\$ 89,945	\$ 104,634
Laborer, Seasonal Per Hr.		\$ 11.10		\$ 11.90		\$ 12.70		\$ 13.50
Sanitation								
Asst Sanitation Foreman (M/W)	\$ 89,759	\$ 105,575	\$ 92,002	\$ 108,214	\$ 94,303	\$ 110,919	\$ 96,660	\$ 113,692
Sanitation: Laborer, Seasonal								
1st Year - Per Day	\$ 83.06	\$ 92.61	\$ 85.13	\$ 94.92	\$ 87.26	\$ 97.29	\$ 89.44	\$ 99.73
2nd Year - Per Day	\$ 89.69	\$ 98.99	\$ 91.93	\$ 101.47	\$ 94.23	\$ 104.01	\$ 96.59	\$ 106.61
Garage								
Mechanic Foreman (M/W)	\$ 83,523	\$ 103,488	\$ 85,611	\$ 106,075	\$ 87,751	\$ 108,727	\$ 89,945	\$ 111,445
Parks & Playgrounds								

April 5, 2022

Millburn Township Committee Meeting Minutes

Director of Recreation	\$ 105,969	\$ 160,898	\$ 108,618	\$ 164,921	\$ 111,334	\$ 169,044	\$ 114,117	\$ 173,270
Asst Super. Recreation	\$ 75,405	\$ 114,892	\$ 77,291	\$ 117,764	\$ 79,223	\$ 120,708	\$ 81,203	\$ 123,726
Recreation Program Specialist	\$ 57,947	\$ 99,155	\$ 59,396	\$ 101,634	\$ 60,880	\$ 104,175	\$ 62,402	\$ 106,779
Recreation Aide	\$ 48,535	\$ 74,009	\$ 49,749	\$ 75,859	\$ 50,992	\$ 77,756	\$ 52,267	\$ 79,700
Social Services								
Sr. Citizen Coordinator	\$ 65,105	\$ 99,155	\$ 66,733	\$ 101,138	\$ 68,401	\$ 103,667	\$ 70,111	\$ 106,258
Director Welfare		\$ 14,949		\$ 15,248		\$ 15,630		\$ 16,020
Omnibus Op Class II - Per Hour	\$ 22.20	\$ 25.26	\$ 22.76	\$ 25.77	\$ 23.32	\$ 26.41	\$ 23.91	\$ 27.07
Police								
Special Police Officer - Per Hour	\$ 24.95	\$ 35.96	\$ 26	\$ 36.68	\$ 26.21	\$ 37.59	\$ 26.87	\$ 38.53
School Traffic Guard:								
Per Day		\$ 78.00		\$ 79.00		\$ 80.00		\$ 81.00
Per Hour		\$ 19.50		\$ 19.75		\$ 20.00		\$ 20.25
Police Matron		\$ 25.00		\$ 25.50		\$ 26.00		\$ 26.50
Records Support Technician 1	\$ 39,957	\$ 58,594	\$ 40,956	\$ 59,766	\$ 41,980	\$ 61,260	\$ 43,029	\$ 62,792
Records Support Technician 2	\$ 48,535	\$ 71,135	\$ 49,749	\$ 72,558	\$ 50,992	\$ 74,372	\$ 52,267	\$ 76,231
Police Chief	\$ 171,515	\$ 206,208	\$ 175,802	\$ 211,363	\$ 180,198	\$ 216,647	\$ 184,702	\$ 222,063
Fire								
Fire Chief	\$ 171,515	\$ 206,208	\$ 175,802	\$ 211,363	\$ 180,198	\$ 216,647	\$ 184,702	\$ 222,063
Parks & Playgrounds								
Bldg. Attendant (BCC/Gero)								
Weekdays Per Hr.		\$ 12.00		\$ 13.00		\$ 14.00		\$ 15.00
Weekends Per Hr.		\$ 18.04		\$ 18.50		\$ 18.96		\$ 19.43
Minicamp Director Per Hr.	\$ 17.89	\$ 23.47	\$ 18.34	\$ 24.06	\$ 18.80	\$ 24.66	\$ 19.27	\$ 25.27
Minicamp Counselor Per Hr.	\$ 10.85	\$ 13.30	\$ 11.12	\$ 13.63	\$ 11.40	\$ 13.97	\$ 11.68	\$ 14.32
Camp Director Per Hr.	\$ 16.92	\$ 25.58	\$ 17.34	\$ 26.22	\$ 17.78	\$ 26.87	\$ 18.22	\$ 27.55
Camp Specialist Per Hr.	\$ 9.72	\$ 16.24	\$ 9.96	\$ 16.65	\$ 10.21	\$ 17.06	\$ 10.47	\$ 17.49
Camp Counselor Per Hr.	\$ 6.38	\$ 8.66	\$ 6.54	\$ 8.88	\$ 6.70	\$ 9.10	\$ 6.87	\$ 9.33
Tennis Attendant Per Hr. (Seasonal)	\$ 9.65	\$ 10.65	\$ 9.90	\$ 10.92	\$ 10.14	\$ 11.19	\$ 10.39	\$ 11.47
Park Maint Worker Per Hr. (Seasonal)		\$ 11.10		\$ 11.90		\$ 12.70		\$ 13.50
Pool								
Mun Pool Manger Per Season	\$ 10,434	\$ 13,011	\$ 10,694	\$ 13,336	\$ 10,962	\$ 13,670	\$ 11,236	\$ 14,011

April 5, 2022

Millburn Township Committee Meeting Minutes

Asst Mun Pool Mngr Per Season	\$	7,978	\$	9,956	\$	8,177	\$	10,205	\$	8,381	\$	10,460	\$	8,591	\$	10,722
Lifeguards Per Hr. (Seasonal)	\$	11.10	\$	12.00	\$	11.10	\$	12.40	\$	11.90	\$	13.20	\$	12.20	\$	14.00
Locker Room Attendant Per Hr. (Seasonal)	\$	7.07	\$	10.73	\$	7.24	\$	11.00	\$	7.43	\$	11.27	\$	7.61	\$	11.55

POSITION	2021		2022		2023		2024		2025									
	Salary Range		Salary Range		Salary Range		Salary Range		Salary Range									
Police Department - PBA/SOA																		
Officer	\$	56,439	\$109,924	\$	57,850	\$112,672	\$	59,296	\$	15,489	\$	60,779	\$118,376	\$	62,298	\$	121,336	
Sergeant			\$123,198			\$126,278				\$129,435			\$132,671					
Lieutenant			\$138,598			\$142,063				\$145,614			\$149,255					
Captain			\$155,922			\$159,821				\$163,816			\$167,911					
Detective																		
1st Grade			\$	6,481		\$	6,643			\$	6,809		\$	6,979			\$	7,154
2nd Grade			\$	4,433		\$	4,544			\$	4,657		\$	4,774			\$	4,893
3rd Grade			\$	2,237		\$	2,293			\$	2,350		\$	2,409			\$	2,469

Millburn Township Committee Meeting Minutes

Section 2. This ordinance shall take effect retroactively to January 1, 2021 upon final passage and publication as required by law.

Old Business

Short Hills Train Station Safety and Pedestrian Improvements

Ms. Thall Eglow advised an in-house traffic consultant reviewed the disorganized area. She voiced her support to reevaluate the area. She hoped to have Brightview Traffic Engineering to look and report on what should be enhanced in the area.

Mr. Vinayak agreed, but noted he was not sure a study was needed.

Ms. Prupis voiced her support to have Brightview examine the area.

Mr. McDonald stated that he would have Brightview submit a proposal.

Ms. Thall Eglow suggested having the township planner work together with Brightview. Mr. McDonald agreed.

Mayor Miggins advised there was support to go ahead with the proposal from Brightview.

Proposed Development Fee Ordinance

Mr. McDonald reviewed proposed revisions and fees to the proposed development fee ordinance. The Committee reached consensus to leave the fees the same. Mr. Carney reviewed the fee ordinance timeline.

Restore Second Lane on Millburn Ave. (from Douglas to town hall)

Ms. Thall Eglow recalled a previous Planning Board meeting. She suggested having Brightview look into the matter and report back.

Mr. Vinayak suggested waiting for the report on 2-way traffic and then revisit at a later time. Mr. Wasserman agreed to wait.

Ms. Miggins suggested waiting until the Township receives the report from Colliers on 2-way traffic before moving forward.

New Business

Proposed Corner Lot Ordinance

Mr. McDonald deferred to Graham Petto, Township Planner, reviewed the proposed draft ordinance. Mr. Petto reviewed the proposed ordinance. Mayor Miggins advised there was consensus to move forward to introduce the ordinance as presented.

Proposed Fee Ordinance

Mr. Petto reviewed the proposed fee ordinance and fee comparison. He advised that in many cases Millburn's fees, comparatively to other towns, were lower and that funds should come from applicants rather than taxpayers.

Mr. McDonald reviewed the benefits, process and simplification of fees. The Committee reviewed various options. Mr. Vinayak and Mr. Wasserman agreed they supported small increases. Ms. Prupis agreed to the language of the ordinance as it was presented.

Mayor Miggins asked when the last time fees were increased. Mr. Petto advised that he would research and report back. Mayor Miggins advised that if the fees hadn't changed in a long time then she was in favor of the ordinance as presented.

April 5, 2022

Millburn Township Committee Meeting Minutes

Adjournment

Mayor Miggins asked for a motion to adjourn the meeting. Mr. Wasserman made a motion to adjourn; the motion was seconded by Mr. Vinayak to adjourn the meeting at 9:25 PM. Vote: All Ayes.

Christine A. Gatti, RMC
Township Clerk

Approved: June 21, 2022